Application No. 360

Date of Filing 6-27-67

APPLICATION FOR REZONING

Boulder County, Colorado

Name of Applicant Boulder County

Address of Applicant _____

_____ Telephone Number _____

Zone Classification, Present A, Agricultural

Zone Classification, Desired GI, General Industrial

Legal description of property requested for rezoning (use separate sheet if necessary.)

The S½ of the SW¼ of Section 21, T3N, R70W of the 6th P.M. EXCEPT THE NE¼, SW¼, SW¼ AND THE NW¼, SE¼, SW¼.

General description of property requested for rezoning (street or road location, general name, or approximate distance from a municipality.)

1/3 mile south of State Highway 66 on County Road 49, approximately 2 miles southeast of Lyons.

List the acreage of each parcel requested for rezoning.

~~80~~ 60 acres

Is the property served by public sewer? _____ Water? _____

Is the property located within three miles of a city or town? _____

Name of city or town _____

-OVER-

STATE OF COLORADO,)
) ss.
COUNTY OF BOULDER,)

At a regular meeting of the Board of County Commissioners for Boulder County, Colorado, held at the Court House in Boulder, Colorado on Monday the 24th day of July A.D. 19 67, there were present:

G. B. Akins, Jr., Chairman,

Joe Smith, Commissioner,

John P. Murphy, Commissioner,

_____, County Attorney,

_____, Clerk,

_____, Deputy,

When the following proceedings, among others, were had and done, to-wit:

Commissioner Smith moved, Commissioner Akins seconded to adopt the following resolution:

WHEREAS, on February 25, 1965, this Board of County Commissioners, by unanimous resolution, rezoned the South ½ of the Southwest ¼ of Section 21, Township 3 North, Range 70 West of the 6th Principal Meridian except the NE¼ of the SW¼ of the SW¼ and Except the NW¼ of the SE¼ of the SW¼ of said Section 21, from "R-Residential" to "I-Industrial" (now replaced by the zoning term "GI-General Industrial"), which rezoning was affirmed by the Supreme Court of the State of Colorado on December 13, 1965, in the case of Ortn V. Board of County Commissioners, _____ Colo. _____, 408 P.2d 974; and

WHEREAS, on October 11, 1965, during the time when this Board's actions in rezoning the above described property were the subject matter of litigation as described above, this Board adopted a new Zoning Resolution, certified to this Board by the Boulder County Planning Commission, including Zoning District Maps which correctly described said property as zoned "GI-General Industrial" (the new designation for property zoned "I-Industrial" under the previous Resolution); and

WHEREAS, subsequently and at some time prior to May 19, 1967, in connection with the preparation of final drafts and reproductions of the maps adopted October 11, 1965, as aforesaid, by clerical, drafting or reproduction error, the zoning of said property was inadvertently and erroneously shown on the final maps as "A-Agricultural"; and

NOW THEREFORE, BE IT RESOLVED that the Board expressly finds:

(a) that the working maps adopted by the Board on October 11, 1965, as a part of the County's comprehensive rezoning resolution were later inadvertently altered through clerical, drafting or reproduction error resulting in an error in the final maps filed May 19, 1967, namely describing the subject property as zoned "A-Agricultural" when its correct zoning as specified by the October 11, 1965, Resolution is "GI-General Industrial"; and

(b) that the County's Zoning District Maps now on file are erroneous and must be corrected to conform with the Board's said resolutions of February 25, 1965, and October 11, 1965;

BE IT FURTHER RESOLVED that the County's Zoning District Maps, including those filed with the County's Department of Development and with the Clerk and Recorder, be corrected by the filing of a new map labeled "Corrected Map - See Resolution of the Board of County Commissioners, dated July 24, 1967" reflecting "GI-General Industrial" zoning of the above described property in lieu of the present incorrect designation of "A-Agricultural."

Introduced, read, passed and adopted this 24th day of July, 1967.

Motion carried unanimously.

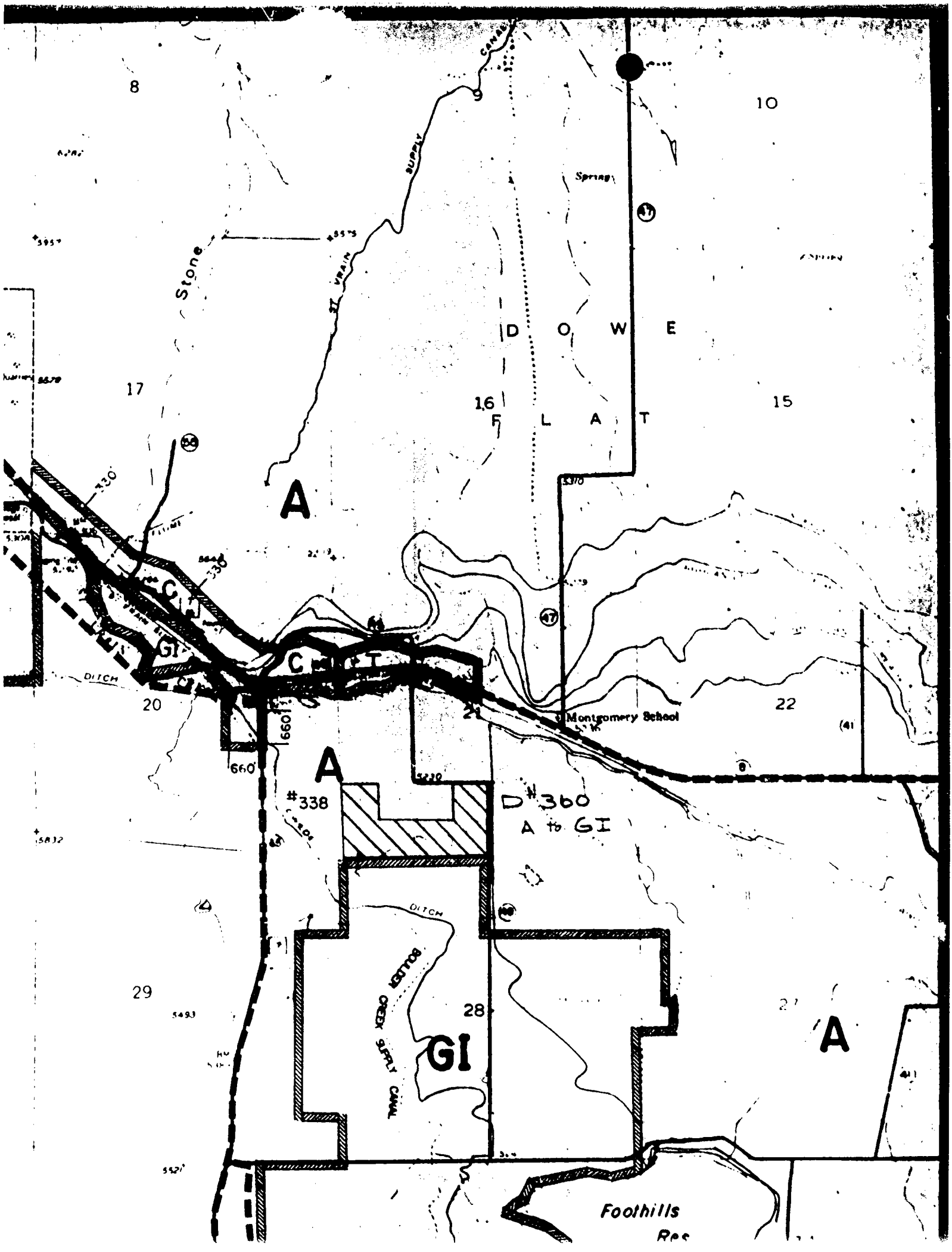
STATE OF COLORADO, }
COUNTY OF BOULDER, } ss.

I, Henry C. Putnam County Clerk and ex-officio Clerk of the Board of County Commissioners in and for the County and State aforesaid, do hereby certify that the annexed and foregoing Order is truly copied from the Records of the proceedings of the Board of County Commissioners for said Boulder County, now in my office.

IN WITNESS WHEREOF, I have hereunto set my hand and affixed the seal of said County, at Boulder, Colorado, this 24th day of July, A.D. 19 67 .

_____, County Clerk.

Per _____, Deputy


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Stone
St VRAIN SUPPLY CANAL
Spring
D O W E
17
16
F L A T
15
A
330
GI
C
DITCH
20
660'
660'
21
22
Montgomery School
A
#338
D #360
A to GI
DITCH
BOULDER CREEK SUPPLY CANAL
29
28
GI
A
Foothills
Res